GOODS AND SERVICES TAX

(COMPENSATION TO STATES)

Insertion of new section 8A.

157. In the Goods and Services Tax (Compensation to States) Act, 2017 (15 of 2017), after section 8, the following section shall be inserted, namely:—

"8A. *Power not to recover cess not levied or short-levied as a result of general practice*.—Notwithstanding anything contained in this Act, if the Government is satisfied that—

(*a*) a practice was, or is, generally prevalent regarding levy of cess (including non-levy thereof) on any supply of goods or services or both; and

(*b*) such supplies were, or are, liable to,—

(*i*) cess, in cases where according to the said practice, cess was not, or is not being, levied; or

(*ii*) a higher amount of cess than what was, or is being, levied, in accordance with the said practice,

the Government may, on the recommendation of the Council, by notification in the Official Gazette, direct that the whole of the cess payable on such supplies, or, as the case may be, the cess in excess of that payable on such supplies, but for the said practice, shall not be required to be paid in respect of the supplies on which the cess was not, or is not being, levied, or was, or is being, short-levied, in accordance with the said practice.".

सत्यमेव जयते
कोष मूलो दण्ड:
INCOME TAX DEPARTMENT